Saturday, September 19, 2026

Owner Requests

CMA Annual Membership Meeting

Coolfont Mountainside Association

August 04, 2026

Valerie Creason
Secretary of Coolfont Mountainside Association
Berkeley Springs, WV 25411

Dear Ms. Creason,

This letter is to advise you and the Board of Directors that I am requesting the following subject be included in the 2026 Annual Meeting in accordance with the Coolfont Mountainside Association (CMA) Bylaws Article 12, Section 12.3. - Meetings of Members.

I am requesting the CMA Bylaws be amended to define the number of subjects that any CMA Member may have included in the Annual Meeting.

The CMA Bylaws, Article 12 - Meetings of Members, Section 12.3, Paragraph 1 states “Any Member may have a subject included in the notice of business to be transacted by advising the Secretary in writing at least twenty-eight (28) days in advance of the Meeting”. My request is to have “Any Member may have a subject” replaced with “ Any Member may have a single subject”. This replacement wording defines a limit to the number of subjects a Member can include in the Annual Meeting. This limit is driven by the need to respect the time and attention of those CMA Members attending the Annual Meeting. Including this limitation doesn’t prevent other subjects from being included, merely that another Member has to request the other subject’s inclusion.

Thank you for your understanding and consideration in this matter. Please feel free to contact me at any time to discuss this matter.

Sincerely,

Gary Farmer

Lot N-5
80 Cardinal Lane
Berkeley Springs, WV 25411

PROPOSED BYLAWS AMENDMENT — NEW SECTION 6.X

Limitation on Common Ownership and Household Representation on the Board

Prevents more than one Director from serving on the Board at the same time when those Directors share a common ownership interest (the same Lot, or Lots commonly owned by the same person(s) or entity) or constitute a household (spouses, domestic partners, or co-owners of the same Lot).

Why This Is Needed

The Board's seven-member structure is designed to represent seven distinct ownership interests. Without an eligibility restriction, a single owner (or a household, or a group of commonly-owned Lots) could hold multiple Board seats simultaneously, concentrating influence in a way the structure is not designed to accommodate.

This amendment was previously approved by a vote of the membership at the September 20, 2025 Annual Meeting (Agenda Item IX.1, "Proposed CMA Bylaws Amendment: Restriction of Board Membership"). The Board deferred implementation at that time, citing a need to research the amendment's legality. West Virginia Code § 31E-8-802(a), part of the West Virginia Nonprofit Corporation Act under which CMA is incorporated, expressly states that the articles of incorporation or bylaws may prescribe qualifications for directors. This is a direct statutory grant of authority to the Bylaws to impose exactly this kind of eligibility qualification, and no provision of Chapter 31E, the Covenants, or the existing Bylaws restricts or preempts that authority.

The Bylaws already contain a comparable qualification restricting the Nominating Committee from nominating "the spouse or any co-owner" of one of its own members (Article 7, Section 7.4), so the underlying concept, limiting Board influence tied to a single ownership interest, is not new to CMA's governance framework; this amendment extends the same principle to general Board composition.

This amendment does not affect the number of votes any Member is entitled to cast in a Director election, and does not affect any sitting Director's ability to complete a term already in progress if a change in ownership brings them within the restriction mid-term.

Section 6.X — Limitation on Common Ownership and Household Representation

No more than one (1) Director may serve on the Board at any time from among the Members who hold a record ownership interest in the same Lot or in Commonly-Owned Lots. For purposes of this Section, "Commonly-Owned Lots" means any two or more Lots in which the same person or persons, individually, jointly, or through a business entity in which such person(s) hold an ownership interest, hold a record ownership interest.

No Member shall be nominated or eligible for election to the Board if that Member's election would cause more than one Director to represent the same Lot or Commonly-Owned Lots, except as provided below.

If, following an election, two or more sitting Directors become subject to this Section due to a change in Lot ownership occurring during their terms, each such Director may complete the remainder of their then-current term. If both Directors took office simultaneously, they shall determine by mutual agreement within thirty (30) days which seat is vacated; if no agreement is reached within that period, the matter shall be resolved by a vote of the remaining Directors.

This Section shall not affect the number of votes any Member is entitled to cast in a Director election, which remains governed solely by Article 4, Section 4.1. This Section limits eligibility to serve as a Director only; it does not affect any Member's right to vote, hold a committee position, or otherwise participate in Association affairs.

PROPOSED BYLAWS AMENDMENT — NEW SECTION 7.1(a)

Minimum Approval Threshold for Election in Uncontested Races

Requires a nominee to receive a majority of the ballots cast in the election before being elected to a vacancy, but only in uncontested elections (where the number of nominees equals the number of vacancies). Contested elections continue to be decided by plurality under the existing Section 7.1.

Why This Is Needed

Section 7.1 currently elects nominees by plurality alone: the nominees receiving the largest number of votes, up to the number of vacancies, are elected. No minimum level of support is required. Where an election is genuinely contested, meaning more nominees stand than there are vacancies, this is a reasonable rule, since voters are choosing among competing options and the leading vote-getters have, by definition, outpolled at least one alternative.

The gap is specific to uncontested elections, where the Nominating Committee's slate (Section 7.4) equals the number of vacancies and no floor nomination is made under Section 7.2. In that circumstance, a nominee faces no competing candidate and is elected regardless of how few votes are actually cast in their favor, including, in theory, a single vote. This amendment targets that specific gap by adding a majority-of-ballots-cast floor, but only when the election is uncontested in this sense (nominees do not outnumber vacancies). It deliberately does not apply the same floor to contested elections, since in a contested race with more nominees than vacancies, a fixed majority threshold applied to every nominee could produce more or fewer qualifying nominees than there are seats to fill, a problem that does not arise when nominees and vacancies are equal in number.

The threshold is measured against the total number of ballots cast in the election, so it is not sensitive to overall meeting turnout: a nominee needs the same proportion of support, a majority, whether twenty ballots are cast or two hundred. It requires no change to the Association's current ballot format and no new ballot line item; it changes only how ballots already cast are counted in an uncontested race.

If a nominee fails to meet the threshold, the resulting vacancy is not left unaddressed. It is resolved through the same vacancy-filling procedure the Bylaws already use for any other mid-term vacancy under Section 6.2: the Board appoints a replacement by majority vote of the remaining Directors, who serves until a successor is elected by the Members. This amendment does not affect the current election cycle and, if adopted, would apply beginning with the next election following adoption.

Section 7.1(a) — Minimum Approval Threshold for Election

"Notwithstanding Section 7.1, in any election in which the number of nominees equals the number of vacancies to be filled, a nominee shall be elected to a vacancy only if the number of votes received by that nominee equals or exceeds a majority (fifty percent (50%) plus one) of the ballots cast in the election. Nominees meeting this threshold shall be elected in accordance with Section 7.1. Any vacancy for which no nominee meets this threshold remains open following the election and is filled through the Board's existing mid-term vacancy procedure under Section 6.2 until the next election. This Section does not apply to any election in which the number of nominees exceeds the number of vacancies to be filled, which remains governed solely by Section 7.1."

PROPOSED BYLAWS AMENDMENT — CLARIFICATION TO SECTION 8.2(k)

Clarifying That the Budget Overrun Cap Applies at the Line-Item Level

Clarifies that the existing 10% expenditure overrun tolerance applies to each individual line item as approved by the membership, the same level of detail members actually vote on, rather than to an undefined budget "category." This amendment does not introduce a new standard; it makes explicit the level at which the existing cap was always meant to be measured.

Why This Is Needed

The current language ties the 10%/5% overrun tolerance to the budget categories referenced in Section 8.2(j) (Capital, Operations, Maintenance, Administration). The annual budget presented to the membership for approval does not itself assign individual line items to any of those four categories, which creates ambiguity as to what is actually being measured against the compliance limit, and allows spending on any single line item to be offset elsewhere within an undefined grouping without a clear violation being triggered.

In my time on the Board, I have not seen a budget presented to the membership with line items grouped or voted on at the category level, only as individual line items. Measuring the overrun tolerance at that level removes the ambiguity and ties the compliance check directly to the dollar figures the membership actually approves.

Section 8.2(k) — Clarifying the Line-Item Overrun Cap

Current Text of Section 8.2(k)

> *"To manage expenditures such that any overruns do not exceed 10% in any category of the approved budget and 5% for the total budget, subject to the following exceptions: expenses for the operation and maintenance of the water and sewer systems or for the protection of life or property shall not be limited by the approved budget."*

Proposed Text of Section 8.2(k)

> *"To manage expenditures such that any overruns do not exceed 10% in any line item of the approved budget and 5% for the total budget, subject to the following exceptions: expenses for the operation and maintenance of the water and sewer systems or for the protection of life or property shall not be limited by the approved budget. For purposes of this subsection, 'line item' means each individual account or expenditure item as separately itemized in the budget presented for membership approval under Section 8.2(j)."*

Gmail **Valerie Creason <valerie.creason@gmail.com>**

Request for inclusion for discussion at the annual meeting

1 message

Rosemary Bigelow <Rosemary@mygrandmotherslace.com> Fri, Aug 21, 2026 at 5:11 PM
To: Valerie Creason <valerie.creason@gmail.com>

Valerie,

As Secretary of the Board, I am submitting my request to you for an item to be added to the agenda for discussion at the annual meeting. Please advise if you need any other information and if you are the correct person to send it to.

Dear CMA Board of Directors:

In accordance with Sec. 12.3 of the CMA Bylaws, I am requesting an item be included for discussion at the annual meeting.

Threats of Personal Financial Liability to Volunteers

I have received an email from a CMA member (see transcribed email below, sender's name removed) stating, "please note many defendants plan to pursue legal fee reimbursement from the board, finance committee and select CMA members personally."

I would like the Board and community to discuss the following:

1) Do volunteers have financial liability if sued by other CMA members?

2) Have others received similar emails or verbal threats or was I targeted specifically?

3) Since each owner has been named a defendant in the lawsuit, we are all also potential witnesses in a trial. Could CMA's lawyer determine if this email would be viewed by a judge as witness intimidation?

We have successfully functioned over the years as a primarily volunteer community which has kept our expenses significantly lower than they otherwise would have been. I worry this will be a huge damper on volunteerism for committees or the Board if people are feeling intimidated or threatened simply by giving their time to the community.

Rosemary Bigelow, O-4

Content of email sent to me

"Subject: **Legal Fees**

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Hi Rosemary -
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It’s my understanding you are on the finance committee now in addition to nominating and welcoming.

As you continue to review/approve legal fee payments, please note many defendants plan to pursue legal fee reimbursement from the board, finance committee and select CMA members personally.

In the event CMA insurance won’t cover the defendant legal fees due to board misconduct, certain defendants will seek reimbursement from specific members personally to avoid a special assessment.

Feel free to call if want to discuss further."